Marshall & Dominguez LLP

Pearland, TX
Phone 281-555-1704

Settlement Demand

September 18, 2024

Claims Department
Harbor Point Mutual Auto Insurance

Re: Claim C-1084 - Demand for settlement

Dear Claims Representative:

Dear Claims Representative:

This office represents Samuel Nelson in connection with the motor vehicle collision that occurred on December 30, 2023. Our client was lawfully operating their vehicle when the other driver, whose vehicle crossed into our client's lane, struck our client head-on. Liability for this collision rests squarely with your insured, who failed to maintain proper control of the vehicle and to keep a proper lookout.

Although the impact occurred at a low rate of speed, our client sustained a cervical neck strain as a direct result of the collision. Following the accident, our client experienced persistent neck pain, stiffness, reduced range of motion, and headaches. Our client sought prompt medical evaluation and has follwoed the treatment plan recommended by their physician, including physical therapy and prescribed medication. Their recovery has been slow and has disrupted their work and daily activities.

Based on the injuries, the medical treatment required, the pain and inconvenience endured, and the associated costs, we have calculated a fair settlement value of $123,000.00. This demand is made in good faith to resolve the claim without litigation. Please respond in writing within thirty days of receipt of this letter. If we do not receive a satisfactory response, we will proceed with filing a lawsuit without further notice.

Sincerely,

Expert review: Anthony Davis, neurologist

Sincerely,

James Moody
Marshall & Dominguez LLP